

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ADEYINKA M. PEACOCK and ANN MARIE
DUMBUYA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. WILLIAM
CORCHADO, SHIELD NO. 13567. POLICE
OFFICER JANE DOE, SERGEANT JOHN ROE
and other unknown named police officers and
supervisors,

Defendants.

Index No.:

Plaintiff demands Trial by
Jury and designates
BRONX COUNTY
as the Place of Trial

SUMMONS

Basis of Venue:
Location of Occurrence in
BRONX COUNTY

To The Above Named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 6, 2020

KREISBERG & MAITLAND, LLP

By: 

Gary Maitland, Esq.
Attorneys for Plaintiff
75 Maiden Lane, Suite 603
New York, New York 10038
Telephone: (212) 629-4970

Defendants' addresses:
See Annexed Rider

Rider

THE CITY OF NEW YORK

c/o James E. Johnson, Esq.
Corporation Counsel
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza
New York, New York 10038

P.O. WILLIAM CORCHADO

New York Police Department
Police Service Area 8
2794 Randall Avenue
Bronx, NY 10465

CAPTAIN KEIYON S. RAMSEY

New York Police Department
Police Service Area 8
2794 Randall Avenue
Bronx, NY 10465

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ADEYINKA M. PEACOCK and ANN MARIE
DUMBUYA,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. WILLIAM
CORCHADO, SHIELD NO. 13567. POLICE
OFFICER JANE DOE, SERGEANT JOHN ROE
and other unknown named police officers and
supervisors,

Jury Trial Demanded

Defendants.

Plaintiffs Adeyinka M. PEACOCK and Ann Marie DUMBUYA, by their attorneys,
Kreisberg & Maitland, LLP, as and for their Complaint herein, allege as follows:

NATURE OF THE CASE

This is an action for false arrest, assault and battery, unlawful imprisonment, malicious prosecution, and intentional infliction of emotional distress all in violation of plaintiff's civil and constitutional rights and all arising from a lawless stop, search, beating, arrest without probable cause and criminal prosecution commencing on November 10, 2018 and concluding when the Bronx District Attorney dismissed all charges on April 17, 2019.

THE PARTIES

(1) Plaintiff ADEYINKA PEACOCK is and was at all times relevant to this action a citizen of the United States and a resident of Bronx County, City of New York, State of New York.

(2) Plaintiff ANN MARIE DUMBUYA is and was at all times relevant to this action a citizen of the United States and resident of Bronx County, City of New York, State of New York.

(3) Defendant City of New York ("City") is a municipal corporation, incorporated pursuant to the laws of the State of New York and amendable to suit in its own name.

(4) Defendant New York City Police Department ("NYPD") is a charter agency of the City and is duly empowered and authorized to perform law enforcement functions in and for the City of New York.

(5) Defendant Police Officer William Corchado ("Corchado"), Shield No. 13567, was at all times relevant hereto an employee and member of the NYPD.

(6) Police Officer Jane Doe ("Doe") was, at all times relevant hereto, an employee and member of the NYPD, and was on patrol with and the partner of P.O. Corchado.

(7) Sgt. John Roe ("Roe") was, at all times relevant hereto, an employee and member of the NYPD, and was responsible for the supervision and conduct of Defendants Corchado and Doe on November 18, 2018.

(8) Unknown named police officers and supervisors were also involved in the events complained of and will be named as defendants as warranted once identified through discovery.

FACTS

(9) On or about November 10, 2018 at about 1:10 p.m. in the vicinity of 3555 Bovina Street, Bronx County, in the City and State of New York, plaintiffs PEACOCK and DUMBUYA were pedestrians lawfully walking along a public sidewalk. Neither had committed, was committing or was about to commit any violation of law. At the foresaid time and place, plaintiffs were stopped and accosted by defendants Corchado and Doe, falsely accused of

possessing and consuming marijuana, and subjected to unwanted and coerced searches of their persons and effects. No marijuana was found on or near either of the plaintiffs. There was no lawful basis for them to be stopped or detained and there was no probable cause to arrest.

(10) While detained, plaintiffs were physically and verbally harassed and abused, Plaintiff PEACOCK was handcuffed to a chain link fence and beaten by Defendant Corchado while defenseless. As a result of this beating he suffered physical injuries and substantial pain for which he received treatment at Jacobi Hospital while still in police custody. Plaintiff DUMBUYA was also physically accosted by Defendant Corchado who grabbed her by the hair, pulled her to the ground and placed her in handcuffs

(11) Defendant Police Officer Jane Doe witnessed the unlawful misconduct of Police Officer Corchado but took no steps to intervene, said nothing to stop Corchado's wrongful behavior and made no report to a superior officer, to the NYPD, or to anyone else despite her legal obligation to do so. As such, Police Officer Jane Doe acted as an accomplice, a look-out and an enabler. Then she conspired with Corchado to cover up his misconduct. By failing to intervene in or to report Corchado's misconduct, Police Officer Jane Doe encouraged and condoned it and so obstructed justice.

(12) Sgt. John Roe was an employee and member of the NYPD, and was responsible to supervise and for the conduct of officers Corchado and Jane Doe at all times relevant hereto. Instead of doing his job by preventing and punishing Corchado's unlawful acts, and by reporting and taking action against Police Officers Corchado and Jane Doe, Sgt. John Roe aided, abetted and covered up their misconduct and conspired to bring false criminal charges against both plaintiffs He too obstructed justice.

(13) Plaintiffs were then taken to the 40th precinct against their will, subjected to formal arrest processing and then, after being held in custody for a number of hours, released with false and fabricated criminal summonses.

(14) Plaintiffs were required to appear in Bronx Criminal Court to defend baseless charges on December 19, 2018, January 16, 2019, February 13, 2019, March 18, 2019 and April 17, 2019, when all charges were dismissed on the District Attorney's own motion.

(15) As a result, plaintiffs lost wages, and suffered physical, emotional and psychological pain and suffering for over five months.

JURISDICTION AND VENUE

(16) Venue is proper in Bronx County because the acts complained of took place there and because both plaintiffs are residents of the Bronx.

(17) Plaintiff PEACOCK duly filed a Notice of Claim on December 20, 2018, within ninety (90) days after the causes of actions set forth herein accrued, as required by General Municipal Law § 50e.

(18) Defendants and the City Comptroller have failed, neglected and/or refused to pay, settle, compromise or adjust plaintiff PEACOCK's claims and more than thirty (30) days have elapsed since he served Notice of Claim.

(19) On March 7, 2018, plaintiff PEACOCK duly submitted to the City's inquiry under oath as required by General Municipal Law § 50-h.

(20) This action has been commenced within one year and ninety days after PEACOCK the claims and causes of action as set forth herein by Plaintiff PEACOCK accrued.

(21) Plaintiff DUMBUYA duly and timely filed a Notice of Claim against the defendants with the New York City Comptroller's Office as required by General Municipal Law § 50 – c.

(22) The aforesaid DUMBUYA Notice of Claim was duly served within 90 days after DUMBUYA's claims and causes of action set forth herein by accrued.

(23) More than thirty (30) days have elapsed since the service of plaintiff DUMBUYA's Notice of Claim.

(24) Defendants and the office of the Comptroller have failed, neglected and refused to pay, settle, compromise or adjust the claims of plaintiff DUMBUYA.

(25) On March 14, 2019, plaintiff DUMBUYA duly submitted to the City's inquiry under oath as required by General Municipal Law § 50-h.

(26) This action has been commenced within one year and ninety days after the claims and causes of action set forth herein by Plaintiff DUMBUYA accrued.

(27) Plaintiff PEACOCK has fully complied with all of the conditions precedent to the commencement of this action. As such, this Court has jurisdiction over this action.

(28) Plaintiff DUMBUYA has fully complied with all of the conditions precedent to the commencement of this action. As such, this Court has jurisdiction over this action.

(29) On July 2, 2019, plaintiff PEACOCK filed a First Amended Notice of Claim adding malicious prosecution to his claims. Said First Amended Notice of Claim was filed within ninety (90) days of the accrual of said cause of action after all charges were dismissed on April 17, 2019.

(30) On July 2, 2019, plaintiff DUMBUYA filed a First Amended Notice of Claim adding malicious prosecution to her claims. Said First Amended Notice of Claim was filed

within ninety (90) days of the accrual of said cause of action after all charges were dismissed on April 17, 2019.

(31) Defendants did not respond to PEACOCK's First Amended Notice of Claim.

(32) Defendants did not respond to DUMBUYA's First Amended Notice of Claim.

CAUSES OF ACTION

FIRST CAUSE OF ACTION FALSE ARREST OF ADEYINKA PEACOCK

(33) Plaintiff repeats and realleges paragraphs numbered "1" through "32" hereof as though set forth fully at length herein.

(34) Defendants had no probable cause to believe that plaintiff PEACOCK had committed a crime and plaintiff did not engage in any conduct that warranted his arrest.

(35) By reason of their aforesaid conduct, defendants falsely arrested the plaintiff and thereby violated his rights under New York State law, under the Fourth and Fourteenth Amendments to the United States Constitution and under Article I Section VI of the New York State Constitution.

(36) That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Mr. PEACOCK suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of his state and federal constitutional rights; serious and painful personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; sustained severe mental anguish, nervous shock and physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

(37) By their aforesaid acts, defendants have violated plaintiff's right to be free from unlawful searches and seizures, secured by New York State Law, Constitution, Article 1, §12, and

Civil Rights law, §8, and under the Fourth and Fourteenth Amendments to the United States Constitution.

(38) Defendants wrongfully, unlawfully, deliberately abused their authority and falsely arrested Mr. PEACOCK in order to obtain a collateral objective outside the legitimate ends of the legal process.

(39) Plaintiff PEACOCK is entitled to monetary damages in an amount to be determined at trial.

SECOND CAUSE OF ACTION
FALSE IMPRISONMENT OF ADEYINKA PEACOCK

(40) Plaintiff repeats and realleges paragraphs numbered "1" through "36" hereof as though set forth fully at length herein.

(41) By reason of defendants' aforesaid conduct, plaintiff was detained without his consent and defendants knew he was detained against his consent.

(42) That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Mr. PEACOCK suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of his state and federal constitutional rights; serious personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; physical pain and psychological trauma and so has been damaged in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction and to be determined at trial.

THIRD CAUSE OF ACTION
ASSAULT AND BATTERY OF PLAINTIFF PEACOCK

(43) Plaintiff PEACOCK repeats and paragraphs numbered "1" through "40" hereof as though set forth fully at length herein.

(44) That at all relevant times herein, defendants, their agents, servants and/or employees were under a duty to protect Plaintiff PEACOCK from any violation of his civil and constitutional rights, and from menacing, assault and battery, excessive force, brutality, and/or other intentional, negligent, or recklessness acts and from his detention, assault and arrest by the NYPD police officers committing said tortious acts.

(45) That at all relevant times herein, defendants, Corchado and Doe intentionally menaced, assaulted, battered, used excessive force, maliciousness and brutality in the arrest, beating detention and custody of Mr. PEACOCK.

(46) That at all relevant times herein, defendants, Corchado and Doe caused Mr. PEACOCK to reasonably apprehend that he was about to be harmfully and offensively touched in his arrest and detention.

(47) That at all relevant times herein, defendants, Corchado and Doe harmfully and offensively battered Mr. PEACOCK during his arrest and detention.

(48) That at all relevant times herein, defendants, Corchado and Doe acted in an unsafe and unreasonable manner in the arrest, detention and custody of Mr. PEACOCK.

(49) That at all relevant times herein, defendant Roe was negligent, reckless and intentionally failed to protect Mr. PEACOCK from the violation of his civil and constitutional and from menacing, assault, battery, excessive force and brutality in his arrest and detention.

FOURTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
OF PLAINTIFF PEACOCK

(50) Plaintiff repeats and realleges paragraphs numbered "1" through "47" hereof as though set forth fully at length herein.

(51) By their foregoing acts, specifically their false arrest and unlawful imprisonment of him, and their assault and battery upon him, defendant Corchado and Doe intended to and did cause plaintiff to suffer emotional pain, suffering and distress.

FIFTH CAUSE OF ACTION
FAILURE TO INTERVENE OF PLAINTIFF PEACOCK

(52) Plaintiff repeats and realleges paragraphs numbered "1" through "50" hereof as though set forth fully at length herein.

(53) Defendants Doe and Sergeant Roe and other arriving officers had an affirmative duty to intervene on Mr. PEACOCK's behalf to prevent the violation of his constitutional rights.

(54) Defendants Doe and Roe failed to intervene on Mr. PEACOCK's behalf to prevent the violation of his constitutional rights despite having had an affirmative obligation and a realistic opportunity to do so.

(55) As a result of the aforementioned conduct of the defendants Doe and Roe, Mr. PEACOCK's constitutional rights were violated and he was subjected to excessive force and sustained physical, psychological and emotional injuries.

SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION OF PLAINTIFF PEACOCK

(56) Plaintiff repeats and realleges paragraphs numbered "1" through "54" hereof as though set forth fully at length herein.

(57) Defendants unlawfully, deliberately and maliciously issued false legal process after placing Plaintiff PEACOCK under arrest.

(58) Defendants acted with intent to do harm to Mr. PEACOCK without lawful excuse or justification.

(59) Defendants knowingly authorized, permitted, assisted and/or engaged in filing and maintaining the criminal prosecution of false charges against Plaintiff PEACOCK causing him to miss work, lose wages and suffer on-going fear, anxiety and distress.

(60) On or about November 10, 2018, defendant Corchado signed false and fabricated first person complaints against each plaintiff, acknowledging in doing so that:

False statements made herein are punishable
As a Class A Misdemeanor pursuant to
P.L. 210.45.

(61) Defendant Corchado's statements in each plaintiff's criminal complaint were false and fabricated and were knowingly false when signed by defendant Corchado.

(62) As a result of defendant Corchado's unlawful conduct as aforesaid, plaintiff ADEYINKA PEACOCK was falsely charged with Resisting Arrest (P.L. § 205.30) under Bronx Criminal Court Docket No. 2018BX037647.

SEVENTH CAUSE OF ACTION
FALSE ARREST OF ANN MARIE DUMBUYA

(63) Plaintiff DUMBUYA repeats and realleges paragraphs numbered "1" through "61" hereof as though set forth fully at length herein.

(64) Defendants had no probable cause to believe that plaintiff had committed a crime and plaintiff did not engage in any conduct that warranted her arrest.

(65) By reason of their aforesaid conduct, defendants falsely arrested the plaintiff and thereby violated her rights under New York State law, under the Fourth and Fourteenth Amendments to the United States Constitution, under Article I Section VI of the New York State Constitution and civil rights law § 8..

(66) That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. DUMBUYA suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious and painful personal injuries; loss of enjoyment of life; economic harm and sustained severe mental anguish, nervous shock and physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction and in an amount to be determined at trial.

EIGHTH CAUSE OF ACTION
FALSE IMPRISONMENT OF ANN MARIE DUMBUYA

(67) Plaintiff DUMBUYA repeats and realleges paragraphs numbered "1" through "62" hereof as though set forth fully at length herein.

(68) By reason of defendants' aforesaid conduct, plaintiff was detained without her consent and defendants knew she was detained against his consent.

(69) That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. DUMBUYA suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; severe mental anguish, nervous shock and physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction and in amount to be determined at trial.

NINTH CAUSE OF ACTION
ASSAULT AND BATTERY OF PLAINTIFF ANN MARIE DUMBUYA

(70): Plaintiff DUMBUYA repeats and realleges paragraphs numbered "1" through "65" hereof as though set forth fully at length herein.

(71) That at all relevant times herein, defendants, their agents, servants and/or employees were under a duty to protect Plaintiff DUMBUYA from the violation of her civil rights, menacing, assault battery, excessive force, brutality, and/or other intentional acts, negligence, recklessness and/or want of care in her detention, assault and arrest by the NYPD police officers committing said acts.

(72) That at all relevant times herein, defendants Corchado and Doe intentionally menaced, assaulted, battered, used excessive force, maliciousness and brutality in the arrest, and detention of Ms. DUMBUYA.

(73) That at all relevant times herein, defendants Corchado and Doe caused Ms. DUMBUYA to reasonably apprehend that he was about to be harmfully and offensively touched.

(74) That at all relevant times herein, defendants, Corchado and Doe harmfully and offensively touched Ms. DUMBUYA during her arrest and detention.

(75) That at all relevant times herein, defendants Corchado and Doe acted in an unsafe and unreasonable manner in the arrest, detention and custody of Ms. DUMBUYA.

(76) That at all relevant times herein, defendant Roe was negligent, reckless and intentionally failed to protect Ms. DUMBUYA from the violation of her civil rights, menacing, assault, battery, excessive force and brutality in her arrest and/or detention.

(77) That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Ms. DUMBUYA suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life;

economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS OF
PLAINTIFF ANN MARIE DUMBUYA

(78) Plaintiff DUMBUYA repeats and realleges paragraphs numbered "1" through "72" hereof as though set forth fully at length herein.

(79) By their foregoing acts, specifically their false arrest and unlawful imprisonment of her, their assault and battery upon her and their malicious prosecution of her, defendant Corchado and Roe intended to and did cause emotional pain, suffering and distress.

ELEVENTH CAUSE OF ACTION
FAILURE TO INTERVENE

(80) Plaintiff DUMBUYA repeats and realleges paragraphs numbered "1" through "75" hereof as though set forth fully at length herein.

(81) Defendants Doe and Sergeant Roe had an affirmative duty to intervene on Ms. DUMBUYA's behalf to prevent the violation of her constitutional rights by defendant Corchado.

(82) Defendants Corchado and Roe failed to intervene on plaintiff's behalf to prevent the violation of her constitutional rights despite having had an affirmative obligation and a realistic opportunity to do so.

(83) As a result of the aforementioned conduct and failure to act of the defendants Doe and Roe, Ms. DUMBUYA's constitutional rights were violated and she was subjected to excessive force and sustained physical, psychological and emotional injuries.

TWELFTH CAUSE OF ACTION
MALICIOUS PROSECUTION OF PLAINTIFF ANN MARIE DUMBUYA

(84) Plaintiff repeats and realleges paragraphs numbered "1" through "78" hereof as though set forth fully at length herein.

(85) Defendants unlawfully, deliberately and maliciously issued legal process after placing Ms. DUMBUYA under arrest.

(86) Defendants wrongfully, unlawfully, deliberately abused their authority and falsely arrested Ms. DUMBUYA in order to obtain a collateral objective outside the legitimate ends of the legal process.

(87) Defendants acted with intent to do harm to Ms. DUMBUYA without lawful excuse or justification.

(88) Defendants knowingly authorized, permitted, assisted and/or engaged in filing and maintaining the criminal prosecution of false charges against Plaintiff Ms. DUMBUYA causing her to miss work, lose wages and suffer on-going fear, anxiety and distress.

(89) On or about November 10, 2018, defendant Corchado signed false and fabricated first person complaints against each plaintiff, acknowledging in doing so that:

False statements made herein are punishable
As a Class A Misdemeanor pursuant to
P.L. 210.45.

(90) Defendant Corchado's statements in each plaintiff's criminal complaint were false and fabricated and were knowingly false when signed by defendant Corchado.

(91) As a result of defendant Corchado's unlawful conduct as aforesaid, plaintiff ANN MARIE DUMBUYA was falsely charged with Resisting Arrest (P.L. 205.30) and Obstructing Governmental Administration (C.P.L. 195.05) under Bronx Criminal Court Docket No. 2018BX037643.

WHEREFORE, plaintiff ADEYINKA PEACOCK demands judgment against the defendants

(i) under the First Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(ii) under the Second Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(iii) under the Third Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(iv) under the Fourth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(v) under the Fifth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(vi) under the Sixth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

WHEREFORE, plaintiff ANN MARIE DUMBUYA demands judgment against the defendants

(i) under the Seventh Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(ii) under the Eighth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(iii) under the Ninth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(iv) under the Tenth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(v) under the Eleventh Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

(vi) under the Twelfth Cause of Action for damages in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter;

Dated: New York, New York
February 6, 2019

KREISBERG & MAITLAND, LLP
Attorneys for Plaintiff
75 Maiden Lane, Suite 603
New York, NY 10038
(212) 629-4970

By: 

GARY MAITLAND, ESQ.

VERIFICATION

GARY MAITLAND, Esq. an attorney duly admitted to practice before the courts of the State of New York, hereby affirms under penalty of perjury:

1. I am a member of Kreisberg & Maitland, LLP, attorneys for plaintiffs ADEYINKA PEACOCK and ANN MARIE DUMBUYA herein. As such, I am fully familiar with the facts and circumstances set forth below.
2. I have read the annexed Verified Complaint. The allegations therein are true, unless stated upon information and belief, in which case, I believe them to be true.
3. The basis of my knowledge is my review of public filings and other documents in my possession, conversations with my clients and my attendance at their § 50-h examinations.
4. I make this verification as a representative and agent of ADEYINKA PEACOCK and ANN MARIE DUMBUYA because they are not residents of the county where we have our offices.

Dated: New York, New York
February 6, 2020


GARY MAITLAND

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ADEYINKA M. PEACOCK and ANN MARIE DUMBUYA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O.
WILLIAM CORCHADO, SHIELD NO. 13567. CAPTAIN KEIYON S. RAMSEY,
COMMANDING OFFICER, PSA 8, POLICE OFFICER JANE DOE #1, SERGEANT JOHN
DOE #1 and other unknown named police officers and supervisors,

Defendants.

SUMMONS & VERIFIED COMPLAINT

KREISBERG & MAITLAND, LLP
ATTORNEYS FOR PLAINTIFF

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Telephone (212) 629-4970
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